

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
HERBERT TORRES,
Plaintiff,

Index No.:

Date Filed:

-against-

Plaintiff designates
KINGS COUNTY
as the place of trial

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG. #943025],
SERGEANT KHURRAM ZUBAIR [TAX REG.
#962891], P.O. JOSEPH P. MCDONALD [TAX REG.
#964642], P.O. KENNETH T. GALLART [TAX REG.
#952760], P.O. MUHAMMAD UMAR [TAX REG.
#964324], P.O. CRAIG SMITH [TAX REG. #956272],
P.O. FRANCIS A. CAHILL [TAX REG. #944252], P.O.
JASON G. SCHRECKENSTEIN [TAX REG. #956247],
LIEUTENANT HASAD BAKSH [TAX REG. #938018],
P.O. SHAZAD AHMED [TAX REG. #961600], and
JOHN DOE AND JANE DOE #1-9 (the names John
and Jane Doe being fictitious, as the true names are
presently unknown),

SUMMONS

Defendants.

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this amended summons, to serve a notice of appearance on the Plaintiff's Attorneys within twenty days after the service of this amended summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this amended summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
January 24, 2024

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
Attorney for the Plaintiff
56 Willoughby Street, Third Floor
Brooklyn, New York 11201
(718) 874-6045

To:
THE CITY OF NEW YORK
LAW DEPARTMENT [CORPORATION COUNSEL]
100 Church Street
New York, NY 10007

Lieutenant Timothy P. Brovakos [Tax Reg. #943025]
NYPD-71st Precinct
421 Empire Boulevard
Brooklyn, NY 11225

Sergeant Khurram Zubair [Tax Reg. #962891]
NYPD-81st Precinct
30 Ralph Avenue
Brooklyn, NY 11221

P.O. Joseph P. McDonald [Tax Reg. #964642]
NYPD
1 Police Plaza
New York, NY 10038

P.O. Kenneth T. Gallart [Tax Reg. #952760]
NYPD Highway Patrol Unit 2
2900 Flatbush Avenue
Brooklyn, NY 11234

P.O. Muhammad Umar [Tax Reg. #964324]
NYPD-71st Precinct
421 Empire Boulevard
Brooklyn, NY 11225

P.O. Craig Smith [Tax Reg. #956272]
NYPD-71st Precinct
421 Empire Boulevard
Brooklyn, NY 11225

P.O. Francis A. Cahill [Tax Reg. #944252]
NYPD Highway Patrol Unit 1
2 Bronx River Parkway
Bronx, NY 10462

P.O. Jason G. Schreckenstein [Tax Reg. #956247]
NYPD-71st Precinct
421 Empire Boulevard
Brooklyn, NY 11225

Lieutenant Hasad Baksh [Tax Reg. #938018]
NYPD-Transit Bureau Bus Enforcement Unit
1 Police Plaza
New York, NY 10038

P.O. Shazad Ahmed [Tax Reg. #961600]
NYPD-Strategic Response Group 4
137-58 Northern Blvd
Flushing, NY 11354

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
HERBERT TORRES,
Plaintiff,

Index No.

COMPLAINT

-against-

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG. #943025],
SERGEANT KHURRAM ZUBAIR [TAX REG.
#962891], P.O. JOSEPH P. MCDONALD [TAX REG.
#964642], P.O. KENNETH T. GALLART [TAX REG.
#952760], P.O. MUHAMMAD UMAR [TAX REG.
#964324], P.O. CRAIG SMITH [TAX REG. #956272],
P.O. FRANCIS A. CAHILL [TAX REG. #944252], P.O.
JASON G. SCHRECKENSTEIN [TAX REG. #956247],
LIEUTENANT HASAD BAKSH [TAX REG. #938018],
P.O. SHAZAD AHMED [TAX REG. #961600], and
JOHN DOE AND JANE DOE #1-9 (the names John
and Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.

-----X

Plaintiff, LAWRENCE JOHNSON, by his attorney, The Law Offices of UGO UZOH,
P.C., complaining of the defendants herein, The City of New York, Lieutenant Timothy
P. Brovakos [Tax Reg. #943025], Sergeant Khurram Zubair [Tax Reg. #962891], P.O.
Joseph P. McDonald [Tax Reg. #964642], P.O. Kenneth T. Gallart [Tax Reg. #952760],
P.O. Muhammad Umar [Tax Reg. #964324], P.O. Craig Smith [Tax Reg. #956272], P.O.
Francis A. Cahill [Tax Reg. #944252], P.O. Jason G. Schreckenstein [Tax Reg.
#956247], Lieutenant Hasad Baksh [Tax Reg. #938018], P.O. Shazad Ahmed [Tax Reg.
#961600], and John Doe and Jane Doe #1-9 (collectively, “defendants”), respectfully
alleges as follows:

1. This is an action at law to redress the deprivation of rights secured to the
plaintiff under color of statute, ordinance, regulation, custom, and/or to
redress the deprivation of rights, privileges, and immunities secured to the
plaintiff by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to

the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

THE PARTIES

2. Plaintiff is and was at all times material herein a resident of Brooklyn, County of Kings, City and State of New York.
3. Defendant City of New York (“City”) is a municipal corporation duly organized and existing under the laws of the State of New York.
4. The City of New York Police Department (“NYPD”) is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.
5. Defendant Lieutenant Timothy P. Brovakos [Tax Reg. #943025] was at all times material herein a lieutenant employed by the NYPD. He is named here in his official and individual capacities.
6. Defendant Sergeant Khurram Zubair [Tax Reg. #962891] was at all times material herein a sergeant employed by the NYPD. He is named here in his official and individual capacities.
7. Defendant P.O. Joseph P. McDonald [Tax Reg. #964642] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
8. Defendant P.O. Kenneth T. Gallart [Tax Reg. #952760] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
9. Defendant P.O. Muhammad Umar [Tax Reg. #964324] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
10. Defendant P.O. Craig Smith [Tax Reg. #956272] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
11. Defendant P.O. Francis A. Cahill [Tax Reg. #944252] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.

12. Defendant P.O. Jason G. Schreckenstein [Tax Reg. #956247] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
13. Defendant Lieutenant Hasad Baksh [Tax Reg. #938018] was at all times material herein a lieutenant employed by the NYPD. He is named here in his official and individual capacities.
14. Defendant P.O. Shazad Ahmed [Tax Reg. #961600] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
15. Defendants John Doe and Jane Doe #1-9 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
16. Defendants Brovakos, Zubair, McDonald, Gallart, and John Doe and Jane Doe are collectively referred to herein as “Brovakos I defendants”.
17. Defendants Brovakos, Umar, Smith, Cahill, Schreckenstein, Baksh, Ahmed, and John Doe and Jane Doe are collectively referred to herein as “Brovakos II defendants”.
18. Brovakos I defendants, Brovakos II defendants, and John Doe and Jane #1-9 are collectively referred to herein as “defendant officers”.
19. At all times material to this Complaint, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

The November 3, 2020, Incident

20. On or about November 3, 2020, at approximately 11:30 p.m., Brovakos I defendants, acting in concert, arrested plaintiff without cause at or close to 2780 86th Street, Brooklyn, New York, and charged plaintiff with numerous crimes.

21. Plaintiff, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
22. Prior to the arrest, plaintiff had briefly stopped to see his friend, Frank Rogers.
23. Within a few minutes thereafter, Brovakos I defendants pulled up behind the plaintiff's vehicle and approached the plaintiff.
24. Upon approach, Brovakos I defendants immediately directed the plaintiff to hand over his driver's license to them.
25. Plaintiff inquired as to the reason why Brovakos I defendants were demanding for his driver's license.
26. Brovakos I defendants stated that the plaintiff was parked in a no standing zone.
27. Plaintiff handed over his driver's license as demanded.
28. Brovakos I defendants proceeded to run a check of the plaintiff's driver's license and confirmed its validity.
29. Brovakos I defendants then proceeded to interrogate the plaintiff asking him, among other things, whether he was smoking marihuana.
30. Plaintiff responded to Brovakos I defendants' queries and informed them that he did not does not smoke.
31. Still not contented, Brovakos I defendants promptly directed the plaintiff to step out of his vehicle.
32. Immediately thereafter, Brovakos I defendants opened plaintiff's door and forcibly pulled him out of his vehicle.
33. Brovakos I defendants then proceeded to assault the plaintiff by gabbing, pushing, and shoving him.
34. Brovakos I defendants thereafter performed an illegal search of the plaintiff with Brovakos sticking his hand inside his private areas including his penis and anus.
35. When plaintiff complained that Brovakos I defendants needed probable cause and/or a valid warrant to arrest and search him and his vehicle, Brovakos I defendants proceeded to tightly handcuff the plaintiff with his

hands placed behind his back causing the plaintiff to experience pain and numbness in his hands.

36. Immediately after the handcuffing, Brovakos I defendants further subjected the plaintiff to intrusive and extended bodily search.
37. Brovakos I defendants' illegal and warrantless search of the plaintiff did not yield any contraband.
38. Eventually, Brovakos I defendants forcibly placed the plaintiff inside their police vehicle and transported the plaintiff to NYPD-78th Precinct.
39. Brovakos I defendants seized and/or impounded the plaintiff's vehicle and drove it to the aforesaid precinct.
40. While at the precinct, Brovakos I defendants further subjected the plaintiff to strip/body cavity searches.
41. Brovakos I defendants also searched the plaintiff's vehicle.
42. Brovakos I defendants' illegal and warrantless search of the plaintiff and the plaintiff's vehicle did not yield any contraband.
43. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
44. Brovakos I defendants seized several of plaintiff's properties.
45. Brovakos I defendants did not issue or provide the plaintiff with any voucher specifying the properties seized from him with the constitutionally-required notice printed on the voucher describing how the plaintiff could reclaim the aforementioned properties.
46. Brovakos I defendants did not otherwise notify the plaintiff of any procedure he could follow to reclaim or recover his properties and have refused to return many of the aforesaid properties to the plaintiff.
47. After detaining the plaintiff at the precinct for a lengthy period of time, plaintiff was transported to the Central Booking.
48. At some point following the plaintiff's arrest, Brovakos I defendants met with prosecutors employed by the Kings County District Attorney's Office.

49. During this meeting, Brovakos I defendants falsely stated to the prosecutors, among other things, that the plaintiff committed numerous crimes.
50. Relying upon the falsified police records, reports and statements, the prosecutors initiated criminal actions against the plaintiff.
51. Plaintiff was eventually arraigned on a criminal court complaint charging him with N.Y. PL 220.16(1) 'Criminal possession of a controlled substance in the third degree (DQO)'; N.Y. VTL 1192(3) 'Operating a motor vehicle while under the influence of alcohol or drugs'; N.Y. VTL 1192(1) 'Operating a motor vehicle while under the influence of alcohol or drugs'; N.Y. VTL 1202(a)(1)(1) 'Stopping, standing or parking prohibited in specified places'; N.Y. VTL 402(1) 'Improper display of license plates'; and N.Y. PL 220.03 'Criminal possession of a controlled substance in the seventh degree'.
52. Plaintiff was subsequently arraigned but was required to return to the criminal court to defend the false charges levied against him.
53. Plaintiff subsequently appeared before the criminal court on multiple occasions to defend the false charges levied against him.
54. On or about December 17, 2021, the false charges levied against plaintiff were summarily dismissed.

The January 24, 2021, Incident

55. On or about January 24, 2021, at approximately 2:45 a.m., Brovakos II defendants, acting in concert, arrested plaintiff without cause at or close to the south east corner of Troy Avenue and President Street, Brooklyn, New York, and charged plaintiff with numerous crimes.
56. Plaintiff, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
57. Prior to the arrest, plaintiff had briefly parked his vehicle and was waiting to pick up his friend.

58. Within a few minutes thereafter, Brovakos II defendants pulled up behind the plaintiff's vehicle and approached the plaintiff.
59. Upon approach, Brovakos II defendants immediately directed the plaintiff to hand over his driver's license to them.
60. Plaintiff inquired as to the reason why Brovakos II defendants were demanding for his driver's license.
61. Brovakos II defendants promptly directed the plaintiff to step out of his vehicle.
62. Immediately thereafter, Brovakos II defendants opened plaintiff's door and forcibly pulled him out of his vehicle.
63. Brovakos II defendants then proceeded to assault the plaintiff by gabbing, pushing, shoving, and twisting his arms.
64. Brovakos II defendants proceeded to perform an illegal search of the plaintiff with Brovakos sticking his hand inside plaintiff's private areas including his penis and anus.
65. When plaintiff complained that Brovakos II defendants needed probable cause and/or a valid warrant to arrest and search him and his vehicle, Brovakos I defendants proceeded to tightly handcuff the plaintiff with his hands placed behind his back causing the plaintiff to experience pain and numbness in his hands.
66. Immediately after the handcuffing, Brovakos II defendants further subjected the plaintiff to intrusive and extended bodily search.
67. Brovakos II defendants' illegal and warrantless search of the plaintiff did not yield any contraband.
68. Eventually, Brovakos II defendants forcibly placed the plaintiff inside their police vehicle and transported the plaintiff to NYPD-71st Precinct.
69. Brovakos II defendants seized and/or impounded the plaintiff's vehicle and drove it to the aforesaid precinct.
70. While at the precinct, Brovakos II defendants further subjected the plaintiff to strip/body cavity searches.
71. Brovakos II defendants also searched the plaintiff's vehicle.

72. Brovakos II defendants' illegal and warrantless search of the plaintiff and the plaintiff's vehicle did not yield any contraband.
73. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
74. Brovakos II defendants seized several of plaintiff's properties.
75. Brovakos II defendants did not issue or provide the plaintiff with any voucher specifying the properties seized from him with the constitutionally-required notice printed on the voucher describing how the plaintiff could reclaim the aforementioned properties.
76. Brovakos II defendants did not otherwise notify the plaintiff of any procedure he could follow to reclaim or recover his properties and have refused to return many of the aforesaid properties to the plaintiff.
77. Plaintiff sustained serious injuries from the assault described herein.
78. Plaintiff requested Brovakos II defendants to transport him to the hospital for treatment.
79. Brovakos II defendants refused the plaintiff's entreaties.
80. Eventually, after the plaintiff's condition had worsened, Brovakos II defendants transported the plaintiff to the hospital for treatment.
81. After detaining the plaintiff for a lengthy period of time, plaintiff was transported to the Central Booking.
82. At some point following the plaintiff's arrest, Brovakos II defendants met with prosecutors employed by the Kings County District Attorney's Office.
83. During this meeting, Brovakos II defendants falsely stated to the prosecutors, among other things, that the plaintiff committed numerous crimes.
84. Relying upon the falsified police records, reports and statements, the prosecutors initiated criminal actions against the plaintiff.
85. Plaintiff was eventually arraigned on a criminal court complaint charging him with N.Y. VTL 1192(3) 'Operating a motor vehicle while under the influence of alcohol or drugs'; N.Y. VTL 1192(1) 'Operating a motor

vehicle while under the influence of alcohol or drugs'; N.Y. PL 195.05 'Obstructing governmental administration in the second degree'; N.Y. PL 205.30 'Resisting arrest', N.Y. PL 220.03 'Criminal possession of a controlled substance in the seventh degree'; and NYC Administrative Code 24-163 'Operation of motor vehicle; idling of engine restricted'.

86. Plaintiff was subsequently arraigned but was required to return to the criminal court to defend the false charges levied against him.
87. On or about October 6, 2021, the false charges levied against plaintiff were summarily dismissed.
88. Plaintiff subsequently appeared before the criminal court on multiple occasions to defend the false charges levied against him.
89. On or about December 1, 2019, at approximately 3:00 a.m., Brovakos, acting in concert with others, had target and arrested plaintiff's ex-girlfriend, Anita Tolbert in a similar fashion as here.
90. Brovakos has a lengthy record of targeting, abusing, harassing, planting evidence, and arresting individuals who are members of racial/ethnic minority groups such as plaintiff, who is of Hispanic descent.
91. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
92. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiff.
93. As a result of the aforesaid actions by defendants, plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

94. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 93 of this complaint as though fully set forth herein.
95. Defendant officers arrested the plaintiff without probable cause or reasonable grounds.
96. The conduct of defendant officers, as described herein, amounted to false arrest.
97. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
98. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

99. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 98 of this complaint as though fully set forth herein.
100. Defendant officers purposely or knowingly used unreasonable force against the plaintiff.
101. There was no legitimate governmental interest in defendant officers' unnecessary and wanton infliction of pain and suffering upon the plaintiff.
102. The conduct of defendant officers, as described herein, amounted to excessive use of force.
103. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
104. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE - against defendant officers

105. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 104 of this complaint as though fully set forth herein.
106. Defendant officers manufactured evidence of criminality against the plaintiff which the prosecutors relied upon to initiate criminal actions against the plaintiff.
107. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of due process rights.
108. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
109. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

110. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 109 of this complaint as though fully set forth herein.
111. Defendant officers routinely harass the plaintiff and would often stop, frisk, search, and detain the plaintiff whenever they run into him.
112. On numerous occasions, including, but not limited to, March 15, 2020 and October 18, 2021, defendant officers unlawfully grabbed the plaintiff, tightly handcuffed him, frisked and searched him on multiple occasions, and restrained plaintiff's freedom to walk away.
113. Defendant officers did not have any reasonable grounds to believe that the plaintiff was engaged (or had planned to engage) in any criminal activity.
114. Defendant officers by their conduct as described herein subjected plaintiff to unlawful stop & frisk and unreasonable search & seizure.

115. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.

116. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendant officers

117. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 116 of this complaint as though fully set forth herein.

118. Defendant officers denied plaintiff his due process right to be free from continued detention after it was or should have been known that plaintiff was entitled to release.

119. The conduct of defendant officers, as described herein, amounted to unreasonable detention.

120. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.

121. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: DELIBERATE INDIFFERENCE - against defendant officers

122. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 121 of this complaint as though fully set forth herein.

123. Defendant officers denied plaintiff treatment needed to remedy his serious medical conditions and did so because of their deliberate indifference to plaintiff's need for medical treatment and care.

124. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.

125. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

126. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 125 of this complaint as though fully set forth herein.

127. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against the plaintiff.

128. Plaintiff was required to, and did, appear in court on multiple occasions to defend himself from the false charges levied against him with malice by defendants.

129. Eventually, the criminal proceeding(s) terminated in plaintiff's favor.

130. Because of the conduct of the defendants, plaintiff was maliciously prosecuted for a lengthy period of time.

131. The conduct of defendant officers, as described herein, amounted to malicious prosecution.

132. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.

133. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: DENIAL OF RIGHT TO EQUAL PROTECTION - against defendant officers

134. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 133 of this complaint as though fully set forth herein.

135. Defendant officers routinely harass the plaintiff and his friends and family, and have refused to conduct any investigations concerning the plaintiff's complaints simply because he is a member of a racial/ethnic minority group.
136. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
137. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

138. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 137 of this complaint as though fully set forth herein.
139. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
140. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
141. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution.
142. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TENTH CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against defendant City

143. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 142 of this complaint as though fully set forth herein.

144. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, the proper procedures for obtaining, returning, destroying and/or retaining DNA, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons, and obligation to effect an arrest only when probable cause exists for such arrest.
145. In addition, defendant City, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of using private information from sealed arrests to target and unlawfully re-arrest and charge individuals who are members of racial/ethnic minority groups such as plaintiff as repeat offenders.
146. As was recently observed by Niji Jain, an attorney at the Bronx Defenders, “the NYPD has been using private information from sealed arrests in over a dozen of their interconnected surveillance databases” to target and unlawfully re-arrest and charge individuals who are members of racial/ethnic minority groups as repeat offenders. *See CityLimits*, NYPD Can No Longer Access Sealed Arrest Records Without Court Order, Judge Rules, <https://citylimits.org/2021/09/28/nypd-can-no-longer-access-sealed-arrest-records-without-court-order-judge-rules/> (last visited January 24, 2024).
147. The NYPD’s “unlawful use of these records has primarily harmed Black and brown New Yorkers who bear the brunt of the NYPD’s over-policing of low-income communities of color.” *See CityLimits*, Opinion: The NYPD’s Abuse of Sealed Arrest Records Jeopardizes All New Yorkers, <https://citylimits.org/2023/04/20/opinion-the-nypds-abuse-of-sealed-arrest-records-jeopardizes-all-new-yorkers/#:~:text=%E2%80%9CLast%20month%2C%20a%20New%20York,>

for%20the%20past%2046%20years.%E2%80%9D (last visited January 24, 2024).

148. In a decision issued in *R. C. v. City of New York* (Index No. 153739/2018), concerning the plaintiffs' motion for preliminary injunction to, among other things, restrain and enjoin defendants from instructing NYPD personnel that they may access and use sealed arrest information without a court order and to require defendants to issue a FINEST training message stating that NYPD personnel may not access and use sealed arrest information without a court order, the court observed, among other things, that the "defendants freely admit that their prior training regarding the sealing of records was contrary to law" and that "the NYPD did not properly train [its police officers] as to the sealing statutes".
149. Relying upon City's policy and practices and the fact that it has failed to properly train defendant officers as to the sealing statutes, defendant officers targeted and unlawfully arrested the plaintiff and thereafter falsely charged him with multiple crimes as a repeat offender.
150. Further, the City, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups, such as plaintiff, on the pretext that they were involved in crimes.
151. The existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
152. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
153. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in

- unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).
154. Notably, numerous civil rights complaints filed in several courts have similarly alleged that many of the police officers involved in this case, including the defendant officers, routinely stop and frisk and manufacture evidence of criminality against individuals who are members of racial/ethnic minority groups, such as the plaintiff, in order to arrest and maliciously prosecute them. *See, e.g., Anita Tolbert v. City of New York* (Index No. 513301/2023), *Sherika Graves v. City of New York* (Index No. 504776/2023); *Luis Soto v. City of New York* (Case No. 22 CV 4966), *David Conyers v. City of New York* (Index No. 502781/2022), *Hashiem Henry v. City of New York* (Index No. 532915/2021); *Lawrence Kallon v. City of New York* (Index No. 518578/2020); *Lawrence Bowers v. City of New York* (Index No. 514537/2019); *Kevin Crump v. Timothy Brovakos* (Case No. 15 CV 7318).
155. Defendant City has settled numerous lawsuits against several police officers alleging, among other things, that the police officers unlawfully stooped and frisked, falsely arrested, and maliciously prosecuted the plaintiffs without probable cause.
156. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police routinely fabricate evidence, arrest innocent citizens without probable cause, and use excessive force in the arrest of innocent citizens.
157. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiffs, incarcerated them, and abused and/or assaulted the plaintiffs.
158. Defendant City maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City acted with deliberate

indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.

159. The actions of defendants, acting under color of State law, deprived plaintiffs of their due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in their person and property, to be free from abuse of process, the excessive use of force and the right to due process.
160. By these actions, defendants have deprived plaintiffs of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

ELEVENTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

161. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 160 of this complaint as though fully set forth herein.
162. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting him and depriving him of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.
163. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution,

and took numerous overt steps in furtherance of such conspiracy, as set forth above.

164. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.

165. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

TWELFTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) -
against defendants

166. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 165 of this complaint as though fully set forth herein.

167. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.

168. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) -
against defendants

169. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 168 of this complaint as though fully set forth herein.

170. Based on the false testimony of defendants, the prosecutors initiated criminal actions against the plaintiff.

171. Plaintiff was required to, and did, appear in court on multiple occasions to defend himself from the false charges levied against him with malice by defendants.

172. Eventually, the criminal proceedings terminated in plaintiff's favor.
173. Because of the conduct of the defendants, plaintiff was maliciously prosecuted for a lengthy period of time.
174. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTEENTH CAUSE OF ACTION: TORTS (ASSAULT AND BATTERY) - against defendants

175. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 174 of this complaint as though fully set forth herein.
176. By reason of and as a consequence of the conduct of defendant officers, plaintiff sustained injuries with the accompanying pain.
177. The conduct of the defendants, as described herein, amounted to assault and battery.
178. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTEENTH CAUSE OF ACTION: TORTS (REPLEVIN & CONVERSION) - against defendants

179. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 178 of this complaint as though fully set forth herein.
180. At the time of the plaintiff's arrest, defendant officers seized and/or appropriated to themselves several of plaintiff's properties.
181. Defendant officers did not provide the plaintiff with any voucher for his said properties.
182. Defendant officers did not issue or provide the plaintiff with any voucher specifying the properties seized from him with the constitutionally-required notice printed on the voucher describing how the plaintiff could reclaim the aforementioned properties.

183. Defendant officers did not otherwise notify the plaintiff of any procedure he could follow to reclaim or recover his properties, and have refused to return the aforesaid properties.

184. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

185. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 184 of this complaint as though fully set forth herein.

186. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff.

187. Plaintiff's emotional distress has damaged his personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention and imprisonment by defendants.

188. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

189. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 188 of this complaint as though fully set forth herein.

190. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff to prevent the physical and mental abuse sustained by plaintiff.

191. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff

or to those in a like situation would probably result from such conduct described herein.

192. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
193. Upon information and belief, defendant City's negligence in hiring and retaining defendant officers proximately caused plaintiff's injuries.

DAMAGES

194. That by reason of the foregoing, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff respectfully prays judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
January 24, 2024

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
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Email: u.ugochukwu@yahoo.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
HERBERT TORRES,

Index No.:

Plaintiff,

-against-

ATTORNEY'S
VERIFICATION

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG. #943025],
SERGEANT KHURRAM ZUBAIR [TAX REG.
#962891], P.O. JOSEPH P. MCDONALD [TAX REG.
#964642], P.O. KENNETH T. GALLART [TAX REG.
#952760], P.O. MUHAMMAD UMAR [TAX REG.
#964324], P.O. CRAIG SMITH [TAX REG. #956272],
P.O. FRANCIS A. CAHILL [TAX REG. #944252], P.O.
JASON G. SCHRECKENSTEIN [TAX REG. #956247],
LIEUTENANT HASAD BAKSH [TAX REG. #938018],
P.O. AHMED R. SHAZAD [TAX REG. #968798], and
JOHN DOE AND JANE DOE #1-9 (the names John
and Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.
-----X

Ugochukwu Uzoh, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

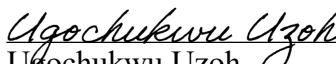
I am of the firm of UGO UZOH, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof, the same is true of
my own knowledge except as to matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by the plaintiff because plaintiff does not
reside in Kings County, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's
file(s), which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Brooklyn, New York
January 24, 2024


Ugochukwu Uzoh

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF _____, 20____

HERBERT TORRES,

Plaintiff,

-against-

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG. #943025],
SERGEANT KHURRAM ZUBAIR [TAX REG.
#962891], P.O. JOSEPH P. MCDONALD [TAX REG.
#964642], P.O. KENNETH T. GALLART [TAX REG.
#952760], P.O. MUHAMMAD UMAR [TAX REG.
#964324], P.O. CRAIG SMITH [TAX REG. #956272],
P.O. FRANCIS A. CAHILL [TAX REG. #944252], P.O.
JASON G. SCHRECKENSTEIN [TAX REG. #956247],
LIEUTENANT HASAD BAKSH [TAX REG. #938018],
P.O. SHAZAD AHMED [TAX REG. #961600], and
JOHN DOE AND JANE DOE #1-9 (the names John and
Jane Doe being fictitious, as the true names are presently
unknown),

Defendants.

**SUMMONS
&
VERIFIED COMPLAINT**

CERTIFICATION: I hereby certify that all papers that I have
served, filed or submitted to the court in the within action are not
frivolous pursuant to Sec. 130-1.1a of the Rules of the Chief
Administrator (22NYCRR)


Ugochukwu Uzoh

January 24, 2024
Dated

Ugo Uzoh, P.C.

Attorneys for plaintiff
Office & Post Office Address

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